

DOWNEY LAW GROUP LLC

ATTORNEYS AT LAW

462 Boston Street (Corporate Office)
Topsfield, MA 01983
978-887-1000

160 Main Street, Unit 4
Haverhill, MA 01830
978-373-2200

Brian P. Downey, Esq.
Caitlin M. Masys, Esq. (MA & NH)
Thomas J. Sullivan, Esq.
Aubrie L. Gallagher, Esq.
Arianna A. Gallagher, Esq. (MA & NH)
John J. O'Keefe, Esq., Of Counsel
James P. Cleary III, Esq. Of Counsel
Joseph A. Cleary, Esq. Of Counsel

June 25, 2026

City Council
City of Haverhill
4 Summer Street
Haverhill, MA 01830

Special Permit Application – 512 Washington Street, Haverhill, MA Required Information

As required by the Special Permit criteria section of the Zoning Ordinance (Section 10.4.2), in order to grant a Special Permit, a Special Permit Granting Authority must make a written determination "that the proposed use or structure(s) shall not cause substantial detriment to the neighborhood or the City, taking into account the characteristics of the site and of the proposal in relation to that site." Under Section 10.4.2, "[i]n addition to any specific factors that may be set forth in th[e] [zoning] chapter, such determination shall include consideration of each of the following: Community needs served by the proposal; Traffic and pedestrian flow and safety, including parking and loading; Adequacy of utilities and other public services; Neighborhood character and social structures; Impacts on the natural environment; and Potential fiscal impact, including impact on City services, tax base, and employment."

Specific Findings Under Zoning Ordinance Section 10.4.2

1. Community needs served by the proposal: The Haverhill community is required by the Commonwealth of Massachusetts to make a specific number of affordable housing units available for the low-income population. This project will move Haverhill closer to the required figure by providing seven (7) units of housing for low-income households giving them home ownership opportunities that would otherwise not be available. There will be a provision within the condominium documents, as well as restrictions in each of the deeds, stating that every unit shall perpetually be defined as affordable housing. Each unit will then be sold to qualified low-income home buyers.

The Washington Street area, where this project is located, is one of 8 sections of Haverhill identified as Areas for Targeted Growth in Vision 2035 and labeled as a "Village Center." The proposal before you today fits directly into that Vision. In fact, if the City had already implemented the proposed zoning changes in Vision 2035, this project would be just one (1) 8 INCH variance away from being allowed as of right.

There is a housing crisis plaguing our community. Haverhill has made great attempts to tackle this problem head-on by allowing for the large developments currently under construction. However, there is a still need for housing for those considered low-income. By granting the requested Special Permit, which will have a minimal impact on the immediate neighborhood, the Council can make great strides in addressing the housing crises without “overdeveloping” and straining public resources.

2. Traffic and pedestrian flow and safety, including parking and loading: Garage and off-street parking that complies with all zoning requirements is provided for each housing unit. There is a sidewalk for pedestrian passage on both sides of Washington Street. Also, this is a residential project, so “loading” is not a concern.

The impact on traffic, pedestrian flow and safety will be limited to that which customarily accompanies a new curb cut for turning off of the Street.

3. Adequacy of utilities and other public services: The project will be served by City water, city sewer, city trash and recycling services. All of these services are already part of the existing infrastructure of the area, as it is already densely populated. This project does not involve the construction of a new roadway or utility systems.

As an added bonus, the project location is close to both existing commuter rail stations as well as the downtown MEVA bus depot.

4. Neighborhood character and social structures: The purpose of a high-density residential zone, in which this project is located, is to maximize the number of dwelling units in a small area. The neighborhood of the proposed project is in the beginning stages of a revitalization. This neighborhood is on its way to becoming a really great location to live in the City. The proposal before you today fits squarely within the definition of an urban planning term known as “infill housing.” Infill housing is the rededication of land in an urban environment to new construction. It is widely considered an economical use of existing infrastructure and a remedy for urban sprawl, especially as part of a smart growth master plan. Haverhill’s Vision 2035 master plan places a huge emphasis on smart growth.
5. Impacts on the natural environment: There will be limited impact on the natural environment as a result of this project. The existing historical main structure on the property will remain and be fully renovated. There is an existing, dilapidated and hazardous garage on the property that will be torn down. In it’s place will be one of the proposed duplexes. There may be some trees that do need to be taken down as part of construction, however, the Applicant is committed to minimizing removal and prioritizing mature trees and shrubs that pose no safety issues.

The entire rear of the lot will actually remain naturally undisturbed, as there is are no plans to expand deeper into the lot than what already exists today.

6. Potential fiscal impact, including impact on City services, tax base, and employment: The project will increase the tax base for the City. This is currently taxed as single family home. Once complete it will become seven (7) separately assessed condominium units. Any impact on City services or schools will be more than made up for by this additional tax collection.

Specific Findings Under Zoning Ordinance Section 6.3.3

Findings under Section 6.3.3 are not applicable to this project as it is a residential, multi-family containing less than ten (10) units.

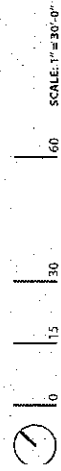
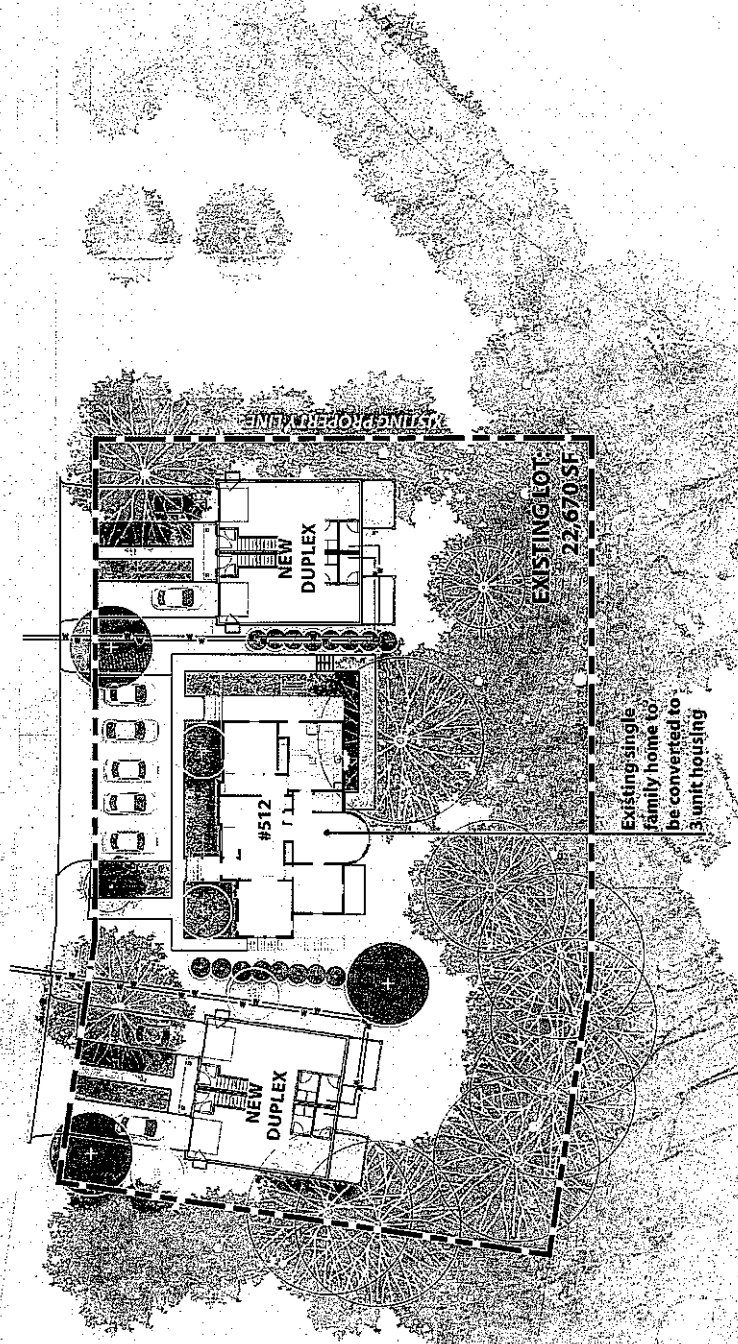
Very truly yours,

DOWNEY LAW GROUP LLC

Caitlin M. Masys

Caitlin M. Masys, Esq.

CONCEPT DESIGN | 7 UNITS



512 WASHINGTON STREET - HAVERHILL, MA
APRIL 16, 2026

PCA

Tighe & Bond

Habitat
for Humanity